

5	21PR-0125	Conservatorship of: Michael DeWees	Petition Filed 1/23/2026 - Third & Final Account	HEARING LIST: Zoom or personal appearance is needed. The following is noted: 1. Proof of service of Notice of Hearing has not been provided as to this hearing date on this Petition. 2. Due to the issues with the other two accounts, a full review on this third and final conservatorship account has not been completed. Once responses on the other two accounts are filed and reviewed, this account will be fully reviewed. At this time, a review appears premature due to the likelihood that changes from the prior two accounts will be needed. 3. The Ex Parte Bond Discharge request filed on July 23, 2026 will be discussed generally, but will likely be continued as well to the next hearing date on all the accounts.
6	21PR-0125	Conservatorship of: Michael DeWees	Petition Filed 09/04/2024 - First Year Account; Cont'd 3/14/25, 7/18/25, 11/14/25 & 5/8/26 (FIFTH HEARING)	HEARING LIST: Zoom or personal appearance is needed. Nothing has been filed on this matter, the First Account for the conservatorship, to address the Probate Notes from the last four hearings. The following issues are noted with the First Account and Report and remain as originally noted on March 14, 2025, July 18, 2025 and November 14, 2025 and May 8, 2026. 1. The accounting starts on July 27, 2021, but the conservatorship was ordered by the Court on July 16, 2021. The declaration provided on July 3, 2025, although not served on any parties, indicates that there were no transactions between July 16th and July 27, 2021 to report. Nevertheless, the bank statement and brokerage statement indicate otherwise with multiple transactions in each document. The Supplement

				<i>filed on November 13th indicated a new Amended First Account will be filed, but nothing has been filed in six months.</i> <i>2. A revised Inventory is needed. The appraisal date should have been 7/16/21. The bank statements provided show the balance of the Premier Valley Checking account is NOT what is represented in the Account as of July 21, 2021. No statements were provided for July 16, 2021. The Supplement filed on November 13th indicated a new Inventory is coming, but nothing has been filed in six months.</i> <i>3. Compliant account statements were not located as required by Probate Code section 2620 for the following:</i> <i>a. Premier Bank. The statement does not match the allegations in the petition and Supplement for the start date of July 16, 2021.</i> <i>b. JP Morgan.</i> <i>i. Why is the cash account not reported in full? It appears that \$3.95 is not reported.</i> <i>ii. Shares numbers are not listed in the accounting.</i> <i>4. Original Care Facility Statements were not located to support the 9/16/21 charge to Summerset. It is unclear why there are also charges for July, August and September 2021, which appear in the statements provided, but do not clearly appear in the accounting. Explanation was not provided how these invoices then collectively create the \$23,643.00 charge, The invoices appear to show the charge would be much higher. In addition, the bank</i>
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				<i>statements show payment to the brother of the conservatee, not the facility for \$23,643.55.</i> 5. <i>Not addressed since March 14, 2025: The following items were posted in the Probate Notes, which were adopted, on March 14, 2025 and have not been addressed for this account period.</i> a. <i>Unusual Transactions. The Petition does not address why the entire investment account was liquidated or “distributed in kind” during this account period. The Supplement filed on November 14th indicates that it was needed to pay bills. This explanation will be addressed with the Amended First Account discussed in the Supplement.</i> b. <i>Accounting issues: The Supplement filed on November 13th indicated a new Amended First Account will be filed, but nothing has been filed in six months.</i> i. <i>Beginning of Account Assets on Hand: An amended Inventory is needed with the accounting starting date as of July 16, 2021 (new).</i> 1. <i>The accounting balance does not match the Inventories and Appraisals filed.</i> 2. <i>1/10/23- Final Supplemental, adds \$2,668.00 in value. Two vehicles are not on the accounting as noted.</i>
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				3. <i>1/12/23- Final, lists \$234,707.31 in value as of 2/27/21</i> 4. <i>Total estate should be \$237,375.31 NOT, \$234,707.31. This has not been addressed since the last account.</i> 5. <i>The Assets on hand list must list the stock shares held, not just the carry value. Revision is needed. Otherwise, all parties must cross reference the 2023 Inventory against the account to understand what is being discussed.</i> 6. <i>Changes in Principal- What does the \$752.00 entry on the assets on hand mean? This schedule should match the Inventories filed. It is unclear why the \$752.00 for "market value of brokerage account at close of accounting day" would be included as part of the starting balance.</i> ii. <i>Schedule B: Gains.</i> 1. <i>What does "gains from distribution in kind" mean? Are these</i>
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				<i>realized gains from sales?</i> 2. <i>The share amounts sold on each asset and dates sold (or transferred?) are needed.</i> 3. <i>Why is there another \$337.20 listed on the gain schedule, for market changes? Only realized gains and losses should have been reported.</i> iii. <i>Schedule C:</i> 1. <i>Detailed explanation is needed on the reimbursements to petitioner in the amounts of \$5,285.45 and \$1,558.54. An order allowing such sums was not located. It is unclear what these sums are regarding.</i> iv. <i>Schedule D: Losses</i> 1. <i>What does “gains from distribution in kind” mean? Are these realized gains from sales?</i> 2. <i>The share amounts sold on each asset and dates sold (or transferred?) are needed. Some stocks were sold in full, but others do not based on</i>
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				<i>the carry value listed. Some stocks sold appear to be new and are not on the inventory list. A change in the form of assets schedule (see below) is needed.</i> <i>v. Assets on Hand at end of Account. Assets are missing from this list. The remaining assets cannot be confirmed due to the lack of original financial statements provided as required per Probate Code section 2620.</i> <i>vi. A Change in the Form of Asset schedule is needed. There are stocks listed in the gains on sale that are not in the Inventory/ Assets on Hand. In addition, sales are reported that do not appear to sell the full number of stocks held at the beginning of the account.</i> <i>c. Fees:</i> <i>i. A paralegal declaration was not located. Fees cannot be determined until that item is provided along with the Attorney Declaration normally required in all conservatorship accounting fee requests. (Cal. Rules of Ct., rule 7.751.) The Declaration should be incorporated into the Amended First Account. The statement in</i>
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				<i>the Supplement filed on November 13th is insufficient.</i> 6. <i>Bond will be addressed in the Second Account Review set for this date. It is noted the Second Account will likely need revision due to the failure to account for a two-year period and the asset changes not accurately reported in this account period.</i> 7. <i>A proposed Order is needed.</i> 8. <i>First and Final Account of the Trust is now due, based on the death of the Conservatee. An OSC re: First and Final Account will be set for December 18, 2026 at 9:00 a.m. in P2.</i>
7	21PR-0125	Conservatorship of: Michael DeWees	Petition Filed 01/24/2025 - Non-1st Year Accounting; (2 nd Conservatorship Account) Cont'd 7/18/25 & 5/8/26 (Third Hearing)	HEARING LIST: Zoom or personal appearance is needed. Nothing has been filed on this matter to address the Probate Notes from the last two hearing. All additional materials were to be filed by April 10, 2026. The following issues are noted with the Second Account and Report: 1. <i>It is unclear how the revision of the First Account may affect this Second account. At this time, there DOES appear to be assets missing from the start of this account, as noted in related hearing item 4, the First Account.</i> 2. <i>Accounting issues:</i> a. <i>Disbursements. Additional explanation is needed.</i> i. <i>Reimbursement to Petitioner for \$437.00 for "sons airline ticket". What is this and whose son is this?</i> 3. <i>Fees: A paralegal declaration was not located. Fees cannot be determined until that item is provided along with the Attorney Declaration normally required in all conservatorship</i>